

Warsaw, January 10, 2024

Decision

DKN.5110.3.2022

Pursuant to Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2023, item 775, as amended), in connection with Article 7 § 1 and § 2 and Article 60 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781) and Article 57 § 1 letters a) and h) and Article 58 § 2 letter b) in connection with Article 5 § 1 letters a) and b) in connection with Article 6 § 1, Article 9 § 2, and Article 28 § 3 of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 05.04.2016, p. 1, as amended), hereinafter referred to as Regulation 2016/679, after conducting an ex officio administrative proceeding regarding the violation of personal data protection regulations by the Minister of Science (formerly: Minister of Education and Science) and by the Minister of Health concerning the processing of data of academic teachers, doctoral students, and students in relation to vaccinations against COVID-19 and their entrustment through the Agreement (...) dated (...) December 2021 concluded between the Minister of Health and the Minister of Science (formerly: Minister of Education and Science), the President of the Personal Data Protection Office,

I. Finding a violation by the Minister of Science (formerly: Minister of Education and Science) of the provisions of Article 5 § 1 letters a) and b) in connection with Article 6 § 1, Article 9 § 2, and Article 28 § 3 of Regulation 2016/679, consisting of:

- 1) processing unlawfully and not in accordance with the purpose of personal data of academic teachers, doctoral students, and students in relation to vaccinations against COVID-19;
- 2) entrusting the aforementioned data through the Agreement (...) dated (...) December 2021 concluded between the Minister of Health and the Minister of Science (formerly: Minister of Education and Science), which did not constitute a contract or another legal instrument, within the meaning of Article 28 § 3 of Regulation 2016/679, issues a reprimand to the Minister of Science.

II. Finding a violation by the Minister of Health of the provisions of Article 5 § 1 letters a) and b) in connection with Article 6 § 1, Article 9 § 2, and Article 28 § 3 of Regulation 2016/679, consisting of:

- 1) processing unlawfully and not in accordance with the purpose of personal data of academic teachers, doctoral students, and students in relation to vaccinations against COVID-19;
- 2) entrusting the aforementioned data through the Agreement (...) dated (...) December 2021 concluded between the Minister of Health and the Minister of Science (formerly: Minister of Education and Science), which did not constitute a contract or another legal instrument, within the meaning of Article 28 § 3 of Regulation 2016/679, issues a reprimand to the Minister of Health.

Justification

The President of the Personal Data Protection Office (hereinafter also referred to as: the President of the Office) received information about possible irregularities related to the processing of personal data of academic teachers, doctoral students, and students in relation to vaccinations against COVID-19 by the Minister of Education and Science (hereinafter also referred to as: MEiN) and the Minister of Health (hereinafter also referred to as: MZ). In the course of this matter, the President of the Personal Data Protection Office addressed the aforementioned authorities and obtained the following explanations:

On (...) December 2021, the Minister of Education and Science concluded an Agreement (...) with the Minister of Health (hereinafter also referred to as: the Agreement) to obtain statistical information on the vaccination rate against COVID-19 of the following members of the university communities: employees (academic teachers, persons conducting classes, persons conducting scientific activities, persons participating in conducting scientific activities), students, and persons applying for a doctoral degree. These actions were undertaken at the request of the Conference of Rectors of Academic

Schools in Poland (hereinafter also referred to as: KRASP).

In the opinion of MEiN, the actions described in the Agreement were dictated by the necessity to ensure effective supervision and proper establishment and implementation of the state's scientific policy. The Agreement was implemented with the assistance of units subordinate to the Ministers (MEiN and MZ), i.e., C. (hereinafter also referred to as: C.), subordinate to the Minister of Health, and the Center (...) (hereinafter also referred to as: O.), supervised by the Minister of Education and Science, and administering on behalf of the Ministers the IT systems used to execute the Agreement, including databases.

To execute the Agreement, at the request of MEiN, O. transferred from (...) the System (...) (hereinafter also referred to as: System [...]), referred to in Article 342 § 1 of the Act of July 20, 2018 - Law on Higher Education and Science (Journal of Laws of 2023, item 742) (hereinafter also referred to as: PSWiN), to (...) the Platform (...) (hereinafter also referred to as: Platform (...) and [...]), administered by C. the following data of the members of the university communities mentioned above: PESEL numbers (without first names and surnames), with assigned statuses of individuals (student, doctoral student, university employee), to which the PESEL number pertains, and the assignment of groups of these individuals to a specific university.

In the opinion of MEiN, in connection with the implementation of the Agreement Based on the indicated data, using the System (...) and the Platform (...), the Ministry of Education and Science (MEiN) received only statistical data regarding individual universities and the vaccination levels in specific groups within those universities; however, it did not receive information about which specific individuals (by name and surname), as well as those using specific PESEL numbers, were vaccinated or not. It was clarified that MEiN does not possess individual data, including the PESEL numbers of specific individuals from universities in connection with information about their vaccination status or lack thereof. Consequently, MEiN does not have knowledge of which specific academic teachers, students, or doctoral candidates are vaccinated; it only has aggregated statistical data concerning individual universities and the vaccination levels in specific groups within those universities. It was emphasized that MEiN does not have and has never had any access to sensitive health data concerning the aforementioned individuals.

In the explanations provided by the Minister of Education and Science, it was indicated that MEiN is the data administrator for the data processed in the System (...). Meanwhile, the Minister of Health has statutory access to the data of members of the university communities covered by the Agreement in accordance with Article 343(5)(1), Article 344(3)(1), and Article 345(3)(1) of the Act on Higher Education and Science (PSWiN), within the framework of the following databases: (...).

As indicated by MEiN, the actions described in the Agreement were dictated by the necessity to ensure the effective functioning of universities during the epidemic. In this regard, vaccination data constituted essential information for university rectors, especially considering the management of the university in the then-current epidemiological situation, which should ensure safe and hygienic working and learning conditions, thereby limiting the spread of COVID-19 among the academic community.

In the explanations provided by MEiN, it was stated that according to Article 433(1) of PSWiN, the ministers supervising universities should be understood as the ministers supervising the universities mentioned in this provision, including the Minister of Health as the minister supervising medical universities. It was emphasized that the Minister of Health, as the supervising body of universities, thus has statutory access to the personal data indicated in the PSWiN provisions contained in the list of employees, the list of students, and the list of individuals applying for a doctoral degree, regarding all individuals to whom these lists pertain, regardless of their place of employment, whether they are conducting scientific activities, studying, or undergoing education in a doctoral school. In MEiN's assessment, the aforementioned provisions of PSWiN do not limit access for the supervising ministers (including the Minister of Health) only to data of individuals at the supervised university.

Regarding the method of transferring PESEL numbers of the aforementioned groups of individuals from the System (...) to the Platform (...), MEiN indicated that in connection with the implementation of

the Agreement, O. provided C. with an extract of data from the System (...) concerning academic teachers, students, and doctoral candidates, as per the instructions of MEiN. The data extract relating to specific groups of individuals from the relevant databases of the System (...), containing identifiers in the form of PESEL numbers, was issued via (...) to C. to enable them to retrieve the data. The data that was used for this purpose was already present in the databases of the System (...).

In the explanations dated January 13, 2023, the Minister of Health indicated that as the administrator, he processed personal data received from the Minister of Education and Science from the System (...) for the purpose of generating statistical information on the vaccination level among members of individual universities based on Article 9(2)(i) of Regulation 2016/679, as the processing was necessary for reasons related to an important public interest in the field of public health for the purpose related to the necessity of preventing, counteracting, and combating the SARS-CoV-2 virus causing COVID-19.

In the explanations dated March 1, 2023, the Minister of Health indicated that he had not processed any personal data received from the Minister of Education and Science that originated from the System (...) from the moment the Agreement (...) was concluded, i.e., during the period from (...) December 2021 to (...) March 2022. This means that the Minister of Health did not perform any processing operations within the meaning of Article 4(2) of Regulation 2016/679 concerning these personal data. The processing operations on the data transferred by the Minister of Education and Science through the Center (...) were actually carried out by C., i.e., the unit subordinate to the Minister of Health responsible for the technical and organizational servicing of health information systems. The processing by the subordinate unit took place at the initiative of the Minister of Health and was defined in the aforementioned agreement. As emphasized, the Minister of Health, as the administrator of personal data in the Platform (...), where data of individuals who underwent vaccination against COVID-19 is processed, defined the framework principles of cooperation between the parties for the purpose of verifying the vaccination level and ensured coordination and transmission of data originating from the System (...). According to § 1(2)(1) of the aforementioned agreement, C. received data including the PESEL number, data identifying the university, and the role in the university structure (1. employees, i.e., academic teachers, individuals conducting classes, individuals conducting scientific activities, individuals participating in conducting scientific activities; 2. students; 3. individuals applying for a doctoral degree). The Minister of Health indicated that according to the Agreement concluded on (...) December 2021, the role of the Minister of Health through C. was: 1) to compare data from the system (...) (provided by the Minister of Education and Science through the Center [...]) with the data held.

originating from the system (...), and then; 2) the transfer to the Minister of Education and Science of statistical information regarding the number of vaccinated individuals, as well as; 3) the preparation and transfer to the Minister of Education and Science of statistical summaries including information on the number of individuals from the System (...) accepted for comparison, referred to in paragraph 2); information on the % of vaccinated individuals overall in universities nationwide; information on the % of vaccinated individuals at individual universities, in groups: students, individuals applying for a doctoral degree, employees (academic teachers, individuals conducting classes, individuals conducting scientific activities, individuals participating in scientific activities).

The Minister of Health emphasized that personal data originating from the Ministry of Education and Science was deleted on (...) March 2022. On that day, the communication channel with the Minister of Education and Science used for data transmission was closed, and all data held by C. regarding the personal data of academic teachers, doctoral candidates, and students concerning vaccinations against COVID-19 was deleted. Furthermore, it was indicated that the Agreement (...) concluded on (...) December 2021 between the Minister of Health and the Minister of Education and Science did not constitute a contract or other legal instrument within the meaning of Article 28(3) of Regulation 2016/679 nor did it constitute joint arrangements of co-administrators referred to in Article 26 of the aforementioned regulation.

In connection with the above findings, the President of the Personal Data Protection Office on July 27,

2023 (ref. DKN.5110.18.2021) initiated ex officio administrative proceedings regarding the violation by the Minister of Education and Science and the Minister of Health of the provisions of Article 5(1)(a) and (b) in conjunction with Article 6(1), Article 9(2), and Article 28(3) of Regulation 2016/679. The Minister of Health responded to the initiation of the proceedings, indicating that the actions carried out by the Minister of Health together with the Minister of Education and Science served important objectives in the general public interest concerning public health and social security. In connection with the state of epidemic, the ease of transmission of the SARS-CoV-2 virus, and the potential threat to life and health posed by infection with the SARS-CoV-2 virus causing COVID-19, there arose a need to verify the vaccination level against COVID-19 among members of the university communities, enabling university leaders to organize teaching adapted to that level. This action was dictated by the necessity to ensure effective supervision and proper determination and implementation of the state's scientific policy.

Furthermore, the Minister of Health indicated that according to Article 5(1) of the Act of April 28, 2011 on the Health Protection Information System (Journal of Laws of 2023, item 2465) (hereinafter also referred to as: SIOZ), the health protection information system includes databases functioning within: the System (...) (S.), specialized teleinformatics systems, and medical registers. The health protection information system is serviced, among others, by the system (...), which serves as an instrument for the exchange of information in the health protection system. A key element of the health protection information system is undoubtedly S., which is defined in Article 10 of the SIOZ Act as a teleinformatics system serving the processing of data concerning provided, ongoing, and planned health care services made available by the teleinformatics systems of service providers. The system (...) is also fed with data originating from the system e. in accordance with the provision of Article 21e(7) of the Act of December 5, 2008 on the Prevention and Control of Infections and Infectious Diseases in Humans (Journal of Laws of 2023, item 1284). The above provision states that data concerning vaccinations against COVID-19 contained in the system (...), including individual medical data, are transferred to the system referred to in Article 7(1) of the SIOZ Act for the purpose of presenting them in I., referred to in Article 7a of this Act, and for monitoring the course of vaccinations.

It was also emphasized that the Minister of Health did not provide personal data originating from the system (...) which is a component of the System (...) (S.) to the Minister of Education and Science. The Minister of Health, through C., provided anonymous data to the Minister of Education and Science, on whose behalf the action was carried out by O. O. In the opinion of the Minister of Health, O. O. did not process personal data of the individuals to whom the data pertains, contained and originating from the system (...). According to § 1(2)(2) of the Agreement (...) between the Minister of Health and the Minister of Education and Science, C. provided anonymous data, devoid of personal data, i.e., as previously indicated - information regarding the vaccination level of members of university communities (employees - academic teachers, individuals conducting classes, individuals conducting scientific activities, individuals participating in scientific activities, students, individuals applying for a doctoral degree), which will not be linked to an identified or identifiable person to whom the data pertains and based on which those individuals cannot be identified.

The Minister of Science (previously: Minister of Education and Science) did not respond to the initiation of administrative proceedings in this matter. In this factual state, after reviewing all the evidence collected in the case, the President of the Personal Data Protection Office considered the following:

Article 5 of Regulation 2016/679 formulates principles regarding the processing of personal data that must be respected by all administrators, i.e., entities that independently or jointly with others determine the purposes and means of processing personal data. According to Article 5(1)(a) of the aforementioned regulation, personal data must be processed lawfully, fairly, and in a transparent manner for the data subject ("lawfulness, fairness, and transparency").

"reliability and transparency"). In point b) of the aforementioned article, it is indicated that such data must be collected for specific, explicit, and legally justified purposes and not further processed in a manner inconsistent with those purposes; further processing for archival purposes in the public interest, for scientific or historical research, or for statistical purposes is not considered incompatible

with the original purposes according to Article 89(1) ("purpose limitation"). These principles "are not merely ideas, values, or postulates derived from the entirety of the provisions on personal data protection, but have a normative character - they are binding norms of law that prescribe a specific manner of conduct. (...) They are particularly significant for the application and interpretation of the provisions on personal data protection. The fact that certain legal norms are recognized in a normative act as principles allows one to conclude that the legislator intended to emphasize their importance and to make them specific superior norms over the other norms defined in these provisions. The supremacy of the principles means, among other things, the necessity of interpreting the norms contained in the provisions on personal data in a manner consistent with those principles" (P. Fajgielski [in:] Commentary on Regulation No. 2016/679 on the protection of natural persons in relation to [in:] General Data Protection Regulation. Personal Data Protection Act. Commentary, 2nd ed., Warsaw 2022, Article 5 [citing]: P. Fajgielski, General Principles of Processing and Protection of Personal Data [in:] Legal Protection of Personal Data in Poland against the Background of European Standards, ed. G. Goździewicz, M. Szablowska, Toruń 2008, p. 17). According to Article 5(2) of the General Data Protection Regulation, the controller is responsible for complying with the provisions of paragraph 1 and must be able to demonstrate compliance ("accountability").

Article 6(1) of Regulation 2016/679 specifies the grounds for the lawfulness of processing personal data, while Article 9 of the aforementioned regulation refers to the processing of so-called special categories of personal data. According to paragraph 1 of the aforementioned article, the processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, as well as the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, or data concerning health, sexuality, or sexual orientation of that person is prohibited. Paragraph 2 of the above article regulates exceptions to the above prohibition, indicating the conditions that allow for the lawful processing of special categories of personal data, without prejudice to the general prohibition described in paragraph 1.

In the opinion of the President of the Office, the actions of the Minister of Education and Science and the Minister of Health in the form of collecting personal data of academic teachers, doctoral students, and students regarding vaccinations for the purpose of generating statistical information on the vaccination rate against COVID-19 among university members were unauthorized, and the mutual entrustment of data based on the Agreement concluded between the aforementioned authorities on (...) December 2021 was in contradiction with the provisions of Article 28(3) of Regulation 2016/679.

According to Article 7 of the Constitution of the Republic of Poland, public authorities operate on the basis of and within the limits of the law. As indicated by doctrine, "the requirements placed on public authorities are more stringent, and the accompanying obligations are further-reaching than those imposed on citizens in Article 83 of the Constitution (...). Citizens are allowed to do everything that is not prohibited by law; authorities are allowed only to do what is permitted to them and classified by law as within their competencies and tasks. The competence of a public authority may be defined more or less specifically, depending on the nature of the matter, but its legal basis is a necessary prerequisite for the action of that authority" (M. Zubik, W. Sokolewicz [in:] Constitution of the Republic of Poland. Commentary. Volume I, 2nd ed., ed. L. Garlicki, Warsaw 2016, Article 7).

In the actions of the Minister of Education and Science, as well as the Minister of Health, there was a violation of legal provisions, specifically the provisions on data protection, including the fundamental principles defined in Article 5(1)(a) and (b) of Regulation 2016/679, related also to the processing of special categories of personal data, which led to the initiation of this administrative proceeding, and further, after a thorough analysis of the evidence gathered in the case, to the issuance of a reprimand to the aforementioned authorities.

In this case, the subject of the proceedings is the processing of personal data for the purpose of generating statistical information on the vaccination rate against COVID-19 among members of individual universities, including data on health status, which due to their nature are subject to special protection under Article 9(1) of Regulation 2016/679.

According to Article 342(1) of the Act on Higher Education and Science (PSWiN), the Minister of Education and Science manages (...) the System (...), hereinafter referred to as the "System (...)". Article 342(4) of the PSWiN states that data in the System (...) are processed for the purpose of performing tasks related to establishing and implementing the state scientific policy, conducting evaluations of the quality of education, evaluations of doctoral schools, and evaluations of the quality of scientific activity, conducting proceedings for the awarding of the degree of doctor, the degree of habilitated doctor, and the title of professor, determining the amount of subsidies and grants, supervising the higher education and science system, and carrying out tasks by NAWA, NCBiR, and NCN. According to Article 342(3) of the PSWiN, the System (...) includes, among other things, the following databases (related to the subject of the aforementioned Agreement): a list of academic teachers, other persons conducting classes, persons conducting scientific activities, and..." of persons participating in its management; list of students; list of persons applying for a doctoral degree. The subsequent provisions of the aforementioned act specify the scope of personal data in the aforementioned lists that may be collected in the System (...) and the entities that have access to them. Thus, according to Article 343, paragraph 5, point 1 of the PSWiN, access to data in the list of academic teachers, other persons conducting classes, persons conducting scientific activities, and persons participating in their management is granted, among others, to the Minister of Education and Science and the Minister of Health, who, based on Article 433, paragraph 1, point 4 of the PSWiN, supervises medical universities. Similarly, access for the Minister of Education and Science and the Minister of Health to the databases of students (Article 344, paragraph 3, point 1 of the PSWiN) and to the list of persons applying for the title of doctor (Article 345, paragraph 3, point 1 of the PSWiN) has been regulated. Furthermore, in the case of these last two lists, according to Article 344, paragraph 4 and Article 345, paragraph 4 of the PSWiN, personal data covered by the lists are not made available. It is also significant that, according to Article 343, paragraph 5, point 1, Article 344, paragraph 3, point 1, and Article 345, paragraph 3, point 1 of the PSWiN, the Minister of Health has unrestricted access to the aforementioned lists of data - which means that this catalog is not limited to the universities supervised by him. It is worth emphasizing that the minister's supervision over universities, as stated in Article 433, paragraph 2 of the PSWiN, is exercised on the principles specified in Chapter XIII of this act and consists, among other things, according to Article 426, paragraph 1, point 1 of the PSWiN, of overseeing universities in terms of compliance with legal regulations and the correctness of public funds expenditure. The purpose for which the Agreement was concluded by the Minister of Education and Science and the Minister of Health has been specified in point (...) of the preamble of the aforementioned document, namely "(...)".

The supervision mentioned above, based on Article 426, paragraph 1, as well as Article 433, paragraphs 1 and 2 of the PSWiN, primarily concerns the lawful operation of universities and the correctness of public funds expenditure. Referring to the state's scientific policy, it should be noted that the content of Article 6 of the PSWiN indicates that it is a strategic document outlining priorities in the functioning of the higher education and science system, defined by the Council of Ministers. According to Article 376 of the PSWiN, the Minister of Education and Science establishes programs and initiatives to implement the state's scientific policy. The provisions of this article impose an obligation on the minister to announce on his subject page in the BIP a communication regarding the establishment of initiatives and programs as well as the recruitment of applications. The communication must contain a number of pieces of information required by law, and in particular describe: the subject of the program and the entities entitled to participate in the program, the conditions that must be met to join the program, the procedure for conducting recruitment for the program, including the appeal procedure, and detailed criteria for evaluating applications. It should be emphasized at this point that the mere right of access of both of these bodies (the Minister of Education and Science and the Minister of Health) to personal data in the System (...) does not constitute a legal basis for conducting any operations on this data - in accordance with Article 6, paragraph 3 of Regulation 2016/679, the legal basis for processing referred to in paragraph 1, letter c) and e) of Regulation 2016/679 must be specified: a) in Union law; or b) in the law of the member state to which the administrator is subject; the purpose of processing must be specified in this legal basis or,

in the case of processing referred to in paragraph 1, letter e) - it must be necessary to perform a task carried out in the public interest or in the exercise of public authority entrusted to the administrator. The aforementioned provisions do not imply that the creation of information regarding the vaccination level of university employees, students, and doctoral candidates constitutes a task carried out by the Minister of Education and Science within the framework of the state's scientific policy and falls within the activities that, according to the relevant act, the Minister of Education and Science may undertake in connection with the supervision over universities. A similar conclusion can be reached by analyzing the purposes for which the Minister of Health may process personal data in the System (...) - there are doubts regarding whether the processing of personal data by him in accordance with the content of the aforementioned Agreement took place within the framework of the supervision exercised by this body over medical universities and thus was compliant with the provisions of the Higher Education and Science Act and Regulation 2016/679.

It should be noted that the legal justification for the actions of the Minister of Education and Science arising from the content of the aforementioned Agreement cannot also be indicated within the framework of complex explanations of Article 51a of the PSWiN. Based on this provision, in cases justified by extraordinary circumstances threatening the life or health of members of the university community, the minister responsible for higher education and science may, by way of regulation, temporarily limit or suspend the operation of universities in the territory of the country or its part, taking into account the degree of threat in a given area. The cited provision cannot serve as a legal basis for the Minister of Education and Science to process (including sharing) personal data within the meaning of Article 6, paragraph 1, letter c) or e) of Regulation 2016/679, due to the conditions that such a processing basis must meet, which arise from Article 6, paragraph 3 of the aforementioned regulation, as mentioned above. Furthermore, the purposes of processing personal data in the System (...) have been strictly defined in Article 342, paragraph 4 of the PSWiN (as a closed catalog) and do not include the tasks of the Minister of Education and Science resulting from Article 51a of the PSWiN. According to § 1, paragraph 3 of the aforementioned Agreement, cooperation...

Minister of Education and Science and the Minister of Health was carried out, among other things, in the form of agreeing and taking joint actions within their respective competences, including: (...).

The analysis of the SIOZ Act, which defines, among other things, the principles of the functioning of the health protection information system and the Electronic Platform supporting it (...), used to implement the Agreement concluded between the Minister of Education and Science and the Minister of Health, leads to the conclusion that the Minister of Health does not have a legal basis, in the sense of Regulation 2016/679, to process personal data in the manner resulting from the aforementioned Agreement, i.e., compiling - using the PESEL number - personal data processed in the System (...) (to which he has access based on the provisions of PSWiN - Article 343 paragraph 5 point 1, Article 344 paragraph 3 point 1, Article 345 paragraph 3 point 1 and which were additionally provided to him by the Minister of Education and Science, as indicated in the submitted explanations "to streamline and expedite the process of developing statistical data") and those processed using the Platform (...). It should be emphasized that before the creation of anonymous statistical information regarding the vaccination level at universities, a new set of personal data was generated, from which specific information regarding vaccinated university employees, students, or doctoral candidates can be obtained, which constitutes the processing of special categories of personal data, subject to the requirements of Article 9 paragraph 2 of Regulation 2016/679. The provisions of the Higher Education and Science Act do not provide a basis for processing such data, as information about vaccinations is not processed in the system (...) and it is difficult to classify the creation of statistical information regarding vaccinations at universities as an activity that the Minister of Health can undertake within the framework of supervision over medical universities exercised in accordance with Article 433 paragraph 1 point 4 and paragraph 2 of PSWiN.

From the content of Article 1 paragraph 1 of SIOZ, it follows that in the health protection information system, referred to as the "information system," data necessary for conducting the state's health policy, improving the quality and availability of health care services, and financing health protection

tasks are processed. According to Article 3 paragraph 1 of SIOZ, the information system includes databases created by entities obliged to maintain them, containing data on: 1) provided, being provided, and planned health care services; 2) service providers and medical staff; 3) service recipients.

In Article 4 paragraph 3 of SIOZ, the data concerning service recipients collected in the aforementioned information system are specified, which include, among others, individual medical data, i.e., according to Article 2 point 7 of SIOZ, data of a natural person regarding provided, being provided, and planned health care services and concerning their health status, including health prevention and the implementation of health programs.

According to Article 5 points 34 and 40 of the Act of August 27, 2004, on health care services financed from public funds (Journal of Laws of 2022, item 2561), health care services include health services, which are actions aimed at prevention, preservation, saving, restoring, or improving health, as well as other medical actions resulting from the treatment process or separate regulations governing the principles of their provision. The analysis of the content of these legal provisions leads to the conclusion that information about vaccination constitutes information about provided health care services and is processed in the "information system" for the purposes specified in the aforementioned Act on the health protection information system.

In the "information system," data of service recipients in the form of first and last names, PESEL numbers, numbers and types of documents confirming the right to health care services financed from public funds, and identification numbers of payers are also processed, but there is no specification of whether a given person has the status of a university employee, student, or doctoral candidate.

According to Article 5 of SIOZ, the information system includes databases functioning within: 1) S. and 2) field-specific teleinformatics systems and is supported, among others, by the Electronic Platform (...). S., as stated in Article 10 paragraph 1 and 8 of SIOZ, is a teleinformatics system serving the processing of data concerning provided, being provided, and planned health care services made available by the teleinformatics systems of service providers, with the data administrator processed in S. being the minister responsible for health matters. Article 12 of SIOZ specifies the purposes of data processing in S., but there is no purpose among them for processing personal data resulting from the Agreement concluded between the Minister of Education and Science and the Minister of Health - namely, the need to verify the vaccination level against COVID-19 among members of university communities in connection with the necessity to ensure effective supervision and proper establishment and implementation of the state's scientific policy.

Additionally, from Article 32 paragraph 2 first sentence of SIOZ, it follows that entities maintaining databases (i.e., those referred to in Article 3 of SIOZ, including the minister responsible for health matters) are entitled to process the collected data to the extent necessary to carry out the tasks performed by them.

Furthermore, it should be added that according to Article 21e of the Act of December 5, 2008, on preventing and combating infections and infectious diseases in humans (Journal of Laws of 2023, item 1284), a central electronic system (...) is created, hereinafter referred to as the "system (...)", in which the following are processed: 1) information necessary for conducting these vaccinations; 2) data of the person undergoing these vaccinations: first name and last name, PESEL number, document identity number and series,

phone number, email address, place of residence, and individual medical data of that person; 3) data contained in the referral. The administrator of the data contained in the system (...) is the minister responsible for health. Data regarding COVID-19 vaccinations contained in the system (...), including individual medical data, are transferred to the system referred to in Article 7(1) of the Act of April 28, 2011 on the system of information in health care (i.e., to the Electronic Platform [...]), for the purpose of presenting them in I., referred to in Article 7a of this Act, and monitoring the progress of vaccinations. Given that the system (...) and the Electronic Platform (...) servicing it do not process data on the status of university employees, students, and doctoral candidates, as mentioned above, the monitoring of vaccination progress referred to in the previous sentence cannot include this information, which also determines the lack of legal grounds for the Minister of Health to process personal data in accordance with the Agreement concluded with the Minister of Education and



Science.

In light of the above, the Minister of Education and Science and the Minister of Health violated the provisions of Article 5(1)(a) and (b) in conjunction with Article 6(1) and Article 9(2) of Regulation 2016/679 by processing, in an unauthorized manner and contrary to the purpose, personal data of academic teachers, doctoral candidates, and students regarding COVID-19 vaccinations. According to the content of Article 28(3) of Regulation 2016/679, processing by the processor takes place on the basis of a contract or other legal instrument, which is subject to Union law or the law of a member state and binds the processor and the administrator, specifying the subject and duration of processing, the nature and purpose of processing, the type of personal data, and the categories of persons to whom the data relates, as well as the obligations and rights of the administrator. This contract or other legal instrument stipulates, in particular, that the processor: a) processes personal data only on the documented instruction of the administrator - this also applies to the transfer of personal data to a third country or international organization - unless such a requirement is imposed on it by Union law or the law of the member state to which the processor is subject; in such a case, before commencing processing, the processor informs the administrator of this legal obligation, unless the law prohibits providing such information due to an important public interest; b) ensures that persons authorized to process personal data are committed to confidentiality or are subject to an appropriate statutory obligation of confidentiality; c) takes all measures required under Article 32; d) complies with the conditions for using the services of another processor referred to in paragraphs 2 and 4; e) taking into account the nature of the processing, assists the administrator, to the extent possible, by means of appropriate technical and organizational measures in fulfilling the obligation to respond to requests from the data subject regarding the exercise of their rights specified in Chapter III; f) considering the nature of the processing and the information available to it, assists the administrator in fulfilling the obligations specified in Articles 32-36; g) after the completion of the services related to processing, depending on the administrator's decision, deletes or returns all personal data to the administrator and deletes all existing copies thereof, unless Union law or the law of the member state requires the retention of personal data; h) provides the administrator with all information necessary to demonstrate compliance with the obligations set out in this article and enables the administrator or an auditor authorized by the administrator to conduct audits, including inspections, and contributes to them. In connection with the obligation specified in the first paragraph (h), the processor shall promptly inform the administrator if, in its opinion, the instruction given to it constitutes a violation of this regulation or other Union or member state data protection provisions.

In connection with the content of Article 6(3) and Article 9(2)(i) of Regulation 2016/679 referenced in this case, the Agreement cannot be treated as a legal basis for processing personal data in the manner described therein, as it does not constitute "Union law or the law of a member state," to which the provisions of Regulation 2016/679 referenced at the beginning of the sentence refer. From the above considerations, it follows that none of the aforementioned authorities (MEiN and MZ) had legal grounds for processing personal data in the manner resulting from the concluded Agreement, therefore it cannot be treated as documentation of the provision of data from the System (...) to the Minister of Health by the Minister of Education and Science, based on one of the grounds referred to in Article 6 of Regulation 2016/679. The Agreement between the Minister of Education and Science and the Minister of Health cannot also be classified as a contract or "other legal instrument" within the meaning of Article 28(3) of Regulation 2016/679, as one entity (here the Minister of Education and Science) cannot entrust the processing of personal data for a purpose for which it does not have a legal basis for processing that data.

Due to the lack of legal basis for processing personal data for the purpose resulting from the subject Agreement by both Ministers, it cannot also be considered as "joint arrangements," which are required in co-administration, as referred to in Article 26 of Regulation 2016/679. Thus, the Minister of Education and Science and the Minister of Health violated Article 28(3) of Regulation 2016/679 by entrusting personal data of academic teachers, doctoral candidates, and students regarding COVID-19 vaccinations through the Agreement (...) dated (...) December 2021.

entered into between the Minister of Health and the Minister of Education and Science, which document did not constitute an agreement or other legal instrument referred to in the aforementioned provision of Regulation 2016/679.

Acting on the basis of Article 58(2)(b) of Regulation 2016/679, according to which each supervisory authority has the power to issue a reprimand to the controller or processor in the event of a breach of the provisions of this regulation by processing operations, the President of the Personal Data Protection Office considers it justified to issue a reprimand to the Minister of Science and the Minister of Health regarding the established breach of the provisions of Article 5(1)(a) and (b) in conjunction with Article 6(1), Article 9(2), and Article 28(3) of Regulation 2016/679. Recital 148 of the aforementioned regulation states that in order for the enforcement of the provisions of the regulation to be more effective, sanctions, including administrative fines, should be imposed for violations, in addition to or instead of appropriate measures imposed under this regulation by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a reprimand. However, due attention should be paid to the nature, gravity, and duration of the violation, whether the violation was not intentional, the actions taken to minimize the damage, the degree of responsibility or any relevant previous violations, the manner in which the supervisory authority became aware of the violation, compliance with measures imposed on the controller or processor, the application of codes of conduct, and any other aggravating or mitigating factors. The President of the Office concluded that in the established circumstances of this case, a reprimand to the Minister of Science and the Minister of Health is a sufficient measure. As a mitigating circumstance, which among other things supports this, the President of the Office recognized the relatively low risk of violation of the rights or freedoms of the data subjects. It should also be emphasized that the cooperation of the Minister of Science (previously: the Minister of Education and Science) and the Minister of Health with the supervisory authority in order to clarify the circumstances of the case was conducted in an uncontroversial manner. Equally importantly, the President of the Office also took into account the fact that both entities - although this does not justify the violations of data protection regulations - operated in the context of a particularly difficult time for society during the COVID-19 pandemic, which hindered and often made it impossible for the authorities to function properly due to the sanitary restrictions in force at that time.

Taking into account the circumstances of the case and the findings made by the President of the Office, there are also no grounds to conclude that the data subjects suffered damage as a result of the actions of the aforementioned entities. The above circumstances therefore justify issuing a reprimand to the indicated authorities for the violation of personal data protection regulations, considering the possibility of avoiding similar incidents in the future. It should be noted that in the event of a similar incident occurring in the future, any reprimand issued by the President of the Office to the Minister of Science and the Minister of Health will be taken into account when assessing the grounds for any potential imposition of an administrative penalty, in accordance with the principles set out in Article 83(2) of Regulation 2016/679.

In this factual and legal situation, the President of the Personal Data Protection Office decided as stated in the operative part.

The decision is final. Based on Article 7(2) of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781) in conjunction with Article 13 § 2, Article 53 § 1, and Article 54 § 1 of the Act of August 30, 2002 - Law on Proceedings Before Administrative Courts (Journal of Laws of 2023, item 1634, as amended), the party has the right to file a complaint against this decision to the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery to the party. The complaint is submitted through the President of the Personal Data Protection Office. The fee for the complaint is 200 zlotys. The party has the right to apply for legal aid, including exemption from court fees.

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